

CHAPTER 605

TOWN AND COUNTRY PLANNING

AN ORDINANCE TO AUTHORIZE THE FORMULATION AND IMPLEMENTATION OF A NATIONAL PHYSICAL PLANNING POLICY; THE MAKING AND IMPLEMENTATION OF A NATIONAL PHYSICAL PLAN WITH THE OBJECT OF PROMOTING AND REGULATING INTEGRATED PLANNING OF ECONOMIC, SOCIAL, PHYSICAL AND ENVIRONMENTAL ASPECTS OF LAND IN SRI LANKA; TO PROVIDE FOR THE PROTECTION OF NATURAL AMENITIES, THE CONSERVATION OF NATURAL ENVIRONMENT, BUILDINGS OF ARCHITECTURAL AND HISTORIC INTEREST AND PLACES OF NATURAL BEAUTY; TO FACILITATE THE ACQUISITION OF LAND FOR THE PURPOSE OF GIVING EFFECT TO SUCH PLAN AND TO PROVIDE FOR MATTERS INCIDENTAL TO OR CONNECTED WITH THE MATTERS AFORESAID

Ordinance Nos,

13 of 1946

Act Nos,

9 of 1950

29 of 1953

10 of 1955

22 of 1955

49 of 2000

[1st January , 1947]

Short title.

1. This Ordinance may be cited as the Town and Country Planning Ordinance.

PART I

GENERAL PROVISIONS

Scope of national physical plan.

[3, 49 of 2000]

2. A national physical plan may be prepared under this Ordinance in conformity with the national physical planning policy, with respect to land, whether there are or are not buildings thereon, with the general object of promoting and regulating the development of the land, of securing proper infrastructure, amenities and conveniences, of conserving the natural and built environment of architectural, historic of aesthetic interest and of natural beauty.

Constitution of the National physical Planning Council.

[3,49 of 2000]

3.

(1) There shall be established a National Physical Planning Council (hereinafter referred to as the Council) consisting of"

(a) the Head of the Government, who shall be the Chairman ;

(b) the Minister in charge of the subject of National Physical Planning, who shall be the Vice Chairman ;

(c) the Minister in charge of the subject of Economic Planning ;

(d) the Minister in charge of the subject of Finance ;

(e) the Minister in charge of the subject of Land ;

(f) the Minister in charge of the subject of Agriculture ;

(g) the Minister in charge of the subject of Industry ;

(h) the Minister in charge of the subject of Housing ;

(i) the Minister in charge of the subject of Urban Development;

(j) the Minister in charge of the subject of Transport;

(k) the Minister in charge of the subject of Highways ;

(l) the Minister in charge of the subject of Ports ;

(m) the Minister in charge of the subject of Civil Aviation ;

(n) the Minister in charge of the subject of Coast Conservation ;

(o) the Minister in charge of the subject of the Environment;

(p) the Minister in charge of the subject of Forestry ;

(q) the Minister in charge of the subject of Tourism ;

(r) the Minister in charge of the subject of Irrigation ;

(s) the Minister in charge of the subject of Power ;

(t) the Minister in charge of the subject of Culture ;

(u) the Minister in charge of the subject of Provincial Councils ;

(v) the Minister in charge of the subject of Plan Implementation ;

(w) the Minister in charge of the subject of Health.

(x) Chief Ministers of all Provinces.

(2) The Chairman may, if the Chairman is satisfied that the proposed national physical plan or other matter which is being or is about to be considered by the Council affects or is likely to affect the interest of any Ministry which is not represented in the Council, request the Minister in charge of that Ministry to be present and to vote at meetings of the Council at which such national physical plan or matter is considered, and any Minister so requested, shall, whenever such national physical plan or matter is considered at a meeting of the Council, be deemed to be a member of the Council.

(3) The Chairman, shall preside at all meetings of the Council. In the absence of the Chairman from any meeting of the Council, the Vice Chairman shall preside at such meeting.

(4) The Minister in charge of the subject of Physical Planning shall, in consultation with the Chairman, be the convener of meetings of the Council.

(5) The Secretary of the Ministry of the Minister in charge of the subject of National Physical Planning shall be the Secretary of the Council.

(6) Subject to the preceding provisions of this section the Council may regulate the procedure in regard to the

meetings of the Council and the transaction of business at such meetings.

Powers and plans of the Council.

[3,49 of 2000]

4. The Council shall have power "

(a) to consider and approve, with or without modification, the national physical planning policy and the draft national physical plan submitted by the Inter-Ministerial Co-ordinating Committee ;

(b) to direct the Inter Ministerial Co-ordinating Committee to re-submit the national physical planning policy or any draft national physical plan modified or amended as instructed by the Council ;,

(c) to consider any draft regional physical plan as may be submitted to it by the Inter- Ministerial Co-ordinating Committee as to its conformity with the national physical plan or national physical planning policy and approve such plan ;

(d) to refer back to the Inter-Ministerial Co-ordinating Committee any such draft regional physical plan with directions that it be resubmitted with amendment or modification, as may be specified, effected ;

(e) to require the National Physical Planning Department to ensure funds, from its annual budget for the implementation of the plan approved by the Council ;

(f) to give the Inter-Ministerial Co-ordinating Committee such directions including a time-frame for the implementation of the plan as may reasonably be necessary to ensure the achievement of the objectives of the Ordinance.

"Constitution of an inter- Ministerial Coordinating Committee on National Physical Planning.

[4,49 of 2000]

4A.

(1) There shall be established an inter- Ministerial Co-ordinating Committee on National Ministerial Physical Planning (hereinafter referred to as "Co-ordinating Committee")

(2) The Co-ordinating Committee shall consist of the following members who shall be appointed by the Minister, appointed under Article 44 of the Constitution to be in

charge of the subject of Physical Planning :"

(a) The Secretaries of the Ministries of the Ministers appointed under Article 44 of the Constitution in charge respectively of the subjects of "

(i) Physical Planning ;

(ii) Economic Planning ;

(iii) Finance ;

(iv) Land ;

(v) Agriculture

(vi) Industry :

(vii) Housing ;

(viii) Transport;

(IX) Highways ;

(x) Ports :

(xi) Civil Aviation :

(xii) Coast Conservation :

(xiii) Environment;

(xiv) Forestry

(xv) Tourism :

(xvi) Irrigation ;

(xvii) Power :

(xviii) Home Affairs ;

(xix) Provincial Councils ;

(xx) Plan Implementation ;

(xxi) Culture ;

(xxii) Fisheries :

(xxiii) Mahaweli Development

(xxiv) Plantation ;

(xxv) Construction.

(b) the Chief Secretaries of all Provinces ;

(c) the Director-General. National Physical Planning ;

(d) the Director-General of National Planning ;

(e) the Director-General of Urban Development Authority appointed under the Urban Development Authority Law No. 41 of 1978 ;and

(f) the Director-General of the Board of Investment of Sri Lanka appointed under the Board of Investment of Sri Lanka Law-No. 4 of 1978.

(3) The Secretary of the Ministry of the Minister in charge of the subject of National Physical Planning shall be the Chairman of the Co-ordinating Committee.

(4) The Chairman of the Co-ordinating Committee may if he is satisfied that the proposed national physical plan or other matter which is being or is about to be considered by the Co ordinating Committee affects or is likely to affect the interest of any Ministry which is not represented in the Co-ordinating Committee, request the Secretary to that Ministry to be present and vote at meetings of the Co-ordinating Committee at which such national physical plan or matter is considered, and any Secretary so requested shall, whenever such national physical plan or matter is considered at a meeting of the Co-ordinating Committee be deemed to be a member of the Committee.

(5) The Chairman or in his absence, a member elected by the members present, shall preside at meetings of the Co-ordinating Committee.

(6) All questions for decisions at meetings of the Co-ordinating Committee shall be decided by the vote of a majority of the members present. In the case of an equality of votes, the member presiding shall have a casting vote.

(7) The quorum for any meeting of the Co-ordinating Committee shall be ten members and subject to the provisions of this section, the Co-ordinating Committee may regulate its own procedure.

Powers and duties
of the Co-ordinating
Committee.
[4,49 of 2000]

4B. It shall be the duty of the Co-ordinating Committee "

(a) to cause a draft policy on national physical planning and a draft national physical plan to be prepared by the Director-General. National Physical Planning ;

(b) to cause any approved policy on national physical planning and any approved national physical plan to be reviewed, revised and updated from time to time as may be necessary ;

(c) to examine any draft or revised policy on national physical planning or any draft or revised national physical plan submitted to it. to cause any amendment or modification which the Co-ordinating Committee considered necessary to be made thereto and to make recommendations thereon to the Council ;

(d) to examine any draft or revised regional physical plan submitted to it and make recommendations thereon to the Council :

(e) to advise the Council with regard to the declaration of any strategic development area in a regional physical plan and of the formulation of a development plan for such area :

(f) to implement any directions received from the Council".

Appointment of
Director-General,
National Physical
Planning, Act.

5. There may be appointed-

(a) a person by name or by office to be or to act as Director-General, National Physical Planning;

(b) such Assistants to the Director-General, National Physical Planning, and such other officers and servants as may be necessary for the purpose of enabling the Director-General, National Physical Planning to exercise and perform the powers, functions and duties conferred or imposed on him by or under this Ordinance.

Duties and function
of the Director
general of national
physical Planning
[7,49 of 2000]

5A. The duties and functions of the Director-General of the National Physical Planning shall be "

(a) to formulate a national physical planning policy :

(b) to prepare a national physical plan ;

(c) to prepare physical planning guide lines to be adopted by the regional or local physical planning authorities :

(d) to prepare any regional or local plan where the regional or local planning authority fails in, or requests, the preparation of such plan ;

(e) to assist Provincial Councils in the preparation and development of regional physical plans ;

(f) to make recommendations to the Coordinating Committee on plans in accordance with the national physical planning policy, for submission to the Council ;

(g) to review and examine, periodically the national physical planning policy, the national physical plan and the national physical planning strategy in operation and where necessary, to recommend to the Coordinating Committee, change in such policy, plan and strategies;

(h) to monitor the implementation of the national physical plan sanctioned by the Council; and

(i) to assist the Council and the Co-ordinating Committee in all activities including performing functions of a secretariat which it may be called upon to do by the Council and the Co-ordinating Committee.

Powers of the
Director- General of
the National
physical Planning.
[7,49 of 2000]

5B.

(1) The Director-General of the National Physical Planning shall have the power to do all such acts as may be

necessary for the discharge of all or any of his functions under the Ordinance.

(2) Without prejudice to the generality of the powers conferred on him by subsection (1). he shall have power"

(a) to carry out such surveys, investigations, studies and research as may be necessary for the discharge of his functions relating to the national physical planning and national physical plans ;

(b) to conduct hearing with a view to ascertaining the opinions of experts, professionals or the general public on matters relating to national physical plan ;

(c) to establish and maintain liaison with international institutions and organisations outside Sri Lanka discharging functions similar to those discharged by the National Physical Planning Department;

(d) to establish and maintain an information data bank of national physical plan and regional physical plans ;

(e) to engage consultants and take such steps as may be necessary to advance the skills of his officers with the view to developing a pool of expertise in all aspects of national and regional physical planning :

(f) to call for and obtain such information as the national physical planning would require including statistics and data from Ministries. Government Departments, Public Corporations Statutory Boards. Provincial Councils. Local Authorities and private sector establishments ;

(g) to ensure through the Ministry of the Minister, funding, either from the local or foreign sources to bridge any shortfall in the budget allocation for the implementation of the plan ; and

(h) to adopt ail measure which in the opinion of the Director-General are considered necessary for conducive or incidental to, the discharge. exercise and performance, of the functions, powers and duties related to the national physical planning.

Technical Advisory
Committee.
[7,49 of 2000]

5C. There shall be established a Technical Advisory Committee ('hereinafter referred to as the "the Advisory Committee") consisting of the following members :"

(a) a representative of the Institute of Town Planners of Sri Lanka established under the Institute of Town Planners. Sri Lanka (Incorporation) Act. No. 23 of 1986 ;

(b) a representative of the Sri Lanka Institute of Architects established under the Sri Lanka Institute of Architects Law. No. 1 of 1976 :

(c) a representative of the Institute of Engineers. Ceylon established under the Institute of Engineers. Ceylon, Act, No. 17 of 1968 :

(d) a representative of the Surveyors Institute of Sri Lanka established under the Surveyors Institute of Sri Lanka (Incorporation) Act. No. 22 of 1982 ;

(e) a representative from the Road Development Authority to be nominated by the Minister in charge of the subject of Transport ;

(f) a representative from the Land Use Policy Planning Division of the Ministry of Lands to be nominated by the Minister in charge of the subject of Lands ;

(g) a representative from the Ceylon Electricity Board to be nominated by the Minister in charge of the subject of Power ;

(h) a representative from the Ministry of Finance to be nominated by the Minister in charge of the subject of Finance ;

(i) a representative from the Ministry of Planning to be nominated by the Minister in charge of the subject of Planning :

(j) one member from among persons who have had experience and qualifications in the field of physical planning ;

(k) one member from among persons who have had experience and qualifications in the Held of water

resources.

Functions of the
Advisory
Committee.
[7,49 of 2000]

5D, The functions of the Advisory Committee shall be to"

(a) advise the Director-General of the National Physical Planning in the formulation of national physical planning policy and on the preparation of the national physical plan :

(b) advise the Director-General on the national physical planning strategy ; and

(c) advise the Director-General on any other matter relating to national and regional physical planning that may be referred to the Advisory Committee by the Director-General.

Term of office of the
members of the
Advisory
Committee.
[7,49 of 2000]

5E.

(1) Every member of the Advisory Committee shall be appointed by the Minister and shall, unless he earlier vacates office by death, resignation or removal, hold office for a period of three years from the date of appointment and shall be eligible for re-appointment.

(2) The Minister may, if he considers it expedient to do so, by Order published in the Gazette, remove from office any member of the Advisory Committee for reason assigned therefor.

(3) A member of the Advisory Committee may at any time resign from his office by letter to that effect addressed to the Minister.

(4) If any member of the Advisory Committee dies, resigns or is removed from office, the Minister may appoint any other person to be a member in place of the member who dies, resigns or is removed from office.

(5) A member who has been appointed under subsection (4) shall, unless he earlier vacates his office by death, resignation or removal, hold office for the unexpired period of the term of office of his predecessor.

(6) The Advisory Committee may discharge its functions notwithstanding any vacancy among its members.

(7) Three members of the Advisory Committee shall constitute a quorum for any meeting of the Advisory Committee.

(8) Subject to the provisions of this Ordinance the Committee may regulate the procedure in regard to its meeting and the transaction of business at the meeting.

(9) The members of the Advisory Committee may be paid such remuneration as may be determined by the Minister in consultation with the Minister in charge of the subject of Finance.

PART II

DEVELOPMENT AREAS AND PLANNING AND EXECUTIVE AUTHORITIES

Urban development
areas. **6.**

(1) Every Municipality, and every town within the meaning of the Urban Councils Ordinance, shall be an urban development area for the purposes of this Ordinance.

(2) The Minister may, by Order published in the Gazette, declare"

(a) that any town within the meaning of the Town Councils Ordinance and specified in the Order, or

(b) that any area, other than a Municipality or a town referred to in subsection (!) or paragraph (a) of this subsection, specified in the Order,

shall be an urban development area for the purposes of this Ordinance.

(3) Any town, or any area referred to in paragraph (/?) of subsection (2), which is declared by or under this Ordinance to be an urban development area shall, notwithstanding that it may be included in any regional development area, continue to be an urban development area and the provisions of this Ordinance shall apply accordingly.

Trunk road
development areas. **7.**

(1) The Minister may, by Order published in the Gazette, declare that any area within a specified distance on either side of any principal thoroughfare shall be a trunk road development area for the purposes of this Ordinance :

Provided, however, that no area which is situated within any urban development area shall be declared under this section to be a trunk road development area or be included in any such area.

(2) Any area which is declared under this Ordinance to be a trunk road development area shall, notwithstanding that it may be included in any regional development area, continue to be a trunk road development area, and the provisions of this Ordinance shall apply accordingly.

Regional
development areas. **8.**

(1) The Minister may, by Order published in the Gazette, declare that any area specified in such Order shall be a regional development area for the purposes of this Ordinance.

(2) Any urban development area or trunk road development area may be included in any regional development area:

Planning authorities. **9.**

(1) The planning authority for the purpose of the preparation of any outline physical plan or detail plan for any urban development area or any land in that area"

(a) shall, if that area is a Municipality or a town referred to in subsection (1) of section 6 or in paragraph (a) of subsection (2) of that section, be the local authority for that Municipality or town, as the case may be; or

(b) shall, if that area is not a Municipality or a town as aforesaid, be the Director-General, National Physical Planning and the Chairman of the Village Council in which the area is situated.

(2) The Director-General of Highways shall be the planning authority for the purpose of the preparation of any outline physical plan or detail plan for any trunk road development area or for any land in any such area.

(3) A Regional Planning Committee, which shall be constituted in accordance with the provisions of section 12 for each regional development area, shall be the planning authority for the purpose of the preparation of a regional

physical plan for all areas in that region, including areas declared by or under this Ordinance to be urban development areas or trunk road development areas.

Executive
authorities.

10.

(1) Subject to the provisions of section 11, the executive authority for the purpose of the execution in any urban development area of any outline physical plan or detail plan or of any provision in any regional physical plan which applies to that area or any land therein"

(a) shall, if that area is a Municipality or a town referred to in subsection (1) of section 6 or in paragraph (a) of subsection (2) of that section, be the local authority for that Municipality or town, as the case may be; or

(b) shall, if that area is not a Municipality or a town as aforesaid, be the Chairman of the Village Council for the village area in which that area is situated :

Provided, however, that if the Minister is satisfied that the Chairman is unable to execute such plan, the executive authority shall be such authority as may be specified by the Minister by Notification published in the Gazette.

(2) The Superintending Engineer for each province shall be the executive authority for the purpose of the execution, in any trunk road development area in that province, of any outline physical plan or detail plan or of any provision in a regional physical plan which applies to that area or to any land therein.

(3) Where any provisions with respect to any land are included in any plan in pursuance of any directions given under section 23, the Chairman of the Village Council for the village area in which such land is situated shall be the executive authority for the purpose of the execution of such provisions;

Executive
authorities in
relation to roads.

11. Where any plan for an urban development area contains any provision relating to any principal thoroughfare, the Superintending Engineer for the province in which the thoroughfare is situated, shall, to such extent as may be specified in the plan, be the executive authority for the purpose of the execution of that provision.

Constitution of
Regional Planning
Committees.
[8,49 of 2000]

12.

(1) The Minister shall appoint for each regional development area a Regional Planning Committee which shall, save as otherwise provided in subsection (2), consist of-

(a) the Chief Secretary of the Provincial Council, who shall be the Chairman ;

(b) a representative from each local authority in the province recommended by the local authority ;

(c) the District Secretaries of the Province ;

(d) a representative of the Urban Development Authority ;

(e) an officer not below the rank of Assistant Superintendent of Surveys of the Survey Department;

(f) a representative of Road Development Authority ; and

(g) not more than three persons nominated by the Minister from among the persons who have distinguished themselves in the field of economics or physical planning, administration, environment or any other field related to physical planning.

(2) Every person appointed to be a member of the committee shall, unless he earlier vacates the office or is removed therefrom by the Minister, hold office for a period of three years from the date of his appointment; any such person vacating the office by effluxion of time shall be eligible for reappointment. Any such person who, without leave of the committee previously had and obtained, is absent from three consecutive meetings of the committee, shall be deemed to have vacated his office, and a new appointment may accordingly be made in his place.

Repealed by 3
[8,49 of 2000]

Repealed by 4
[8,49 of 2000]

Transaction of
business by
Regional
Committees.

13.

(1) Regulations may be made providing for the conduct of business by Regional Planning Committees and prescribing the procedure to be followed at meetings of such committees. Subject to any such regulations a Regional Planning Committee shall regulate its own procedure.

(2) Meetings of a Regional Planning Committee may be summoned by the chairman of the committee whenever he may deem it necessary :

Provided that the chairman shall summon a meeting whenever he is requested in writing so to do by not less than five members of the committee.

(3) The Director-General, National Physical Planning shall be entitled to be present at any meeting of a Regional Planning Committee, but shall not have the right to vote at any such meeting.

Dissolution of
Regional
Committees.

14. Where a regional physical plan comes into operation for any regional development area in accordance with the provisions of this Ordinance the Regional Planning Committee constituted for that area shall be dissolved.

Expenses of
Regional
Committees.

15.

(1) It shall be lawful for the Commissioner of Local Government to engage the services of such officers and servants and to incur such expenses as may be necessary for the purpose of enabling a Regional Planning Committee to prepare a regional physical plan.

(2) All expenses incurred for the purpose of the preparation of regional physical plans shall be paid out of the Consolidated Fund from such sums as may be voted for the purpose by Parliament.

(3) The Deputy Secretary to the Treasury shall as soon as may be after the end of each financial year transmit to the Minister a statement setting out the total amount paid out of the Consolidated Fund in that year in defraying the expenses incurred under subsection (!) for the purpose of the preparation of a regional physical plan for any regional development area; and the Minister shall thereupon determine the share, if any, of such expenses which shall be borne by the local authority for each Municipality or town which is included within that area. Regulations may

be made prescribing the manner in which such determinations shall be made, and the matters which shall be taken into consideration for the purpose of such determinations.

(4) Every local authority shall, before the expiry of a period of one month after the receipt from the Commissioner of a statement specifying the sum due from that authority in accordance with any determination of the Minister under subsection (3), pay such sum out of the funds of that authority into the Consolidated Fund.

Expenditure on
preparation of plans
for urban
development .

16.

(1) All expenses incurred by a local authority in the preparation of a plan shall be defrayed out of the funds of that authority.

(2)

(a) All expenses incurred by the Director-General, National Physical Planning in the preparation of any plan for any urban development area shall be paid out of the Consolidated Fund from moneys voted for the purpose by Parliament.

(b) The Deputy Secretary to the Treasury shall at the end of each financial year transmit to the Minister a statement showing the total amount paid under paragraph (a) in defraying the expenses incurred in that year in the preparation of any plan, and such amount shall be refunded to the Consolidated Fund out of the funds of the authority by whom the plan should have been prepared.

Expenses of
Director-General of
Highways.

17. All expenses incurred by the Director-General of Highways in the preparation of plans shall be defrayed out of the Consolidated Fund from moneys voted for the purpose by Parliament.

PART III

PLANNING PROCEDURE

Application for
directions to
prepare a regional
physical plan.

18. The Regional Planning Committee for any regional development area may make application to the Minister to direct the preparation of a regional physical plan for that area.

Application for
directions to
prepare an outline
physical plan.

19. The planning authority for any urban development area or trunk road development area may at any time make application to the Minister to direct the preparation of an outline physical plan for that area or for any land therein ; Provided that no such application shall be made in respect of any trunk road development area except with the prior approval of the Minister in charge of the subject of Principal Thoroughfares.

Application for
directions to
prepare a detail
plan.

20.

(1) The planning authority for any urban development area or trunk road development area may, at any time after an outline physical plan for that area or any land therein has come into operation in accordance with the provisions of this Part, make application to the Minister to direct the preparation of a detail plan for any land to which any provision of that outline physical plan applies.

(2) Notwithstanding that an outline physical plan has not come into operation for any urban development area or trunk road development area, the planning authority for that area may make application to the Minister to direct the preparation of a detail plan for any land in that area, if the authority is of opinion that the provisions proposed to be included in the detail plan are urgently necessary for the purpose of"

(a) the regulation of the development of such land; or

(b) the improvement of the locality in which the land is situated ; or

(c) the preservation of the amenities of the locality in which the land is situated.

Order for
preparation of plan.
[10,49 of 2000]

21.

(1) Subject to the provisions of subsection (3), the Minister may, on application made to him in that behalf under the preceding provisions of this Part, by Order published in the Gazette direct that a regional physical plan shall be prepared for any regional development area or that an outline physical plan or a detail plan shall be prepared for the whole or any part of any urban development area or trunk road development area, as the case may be in conformity with the national physical planning policy.

(2) Subject to the provisions of subsection (3), the Minister may, of his own motion or upon the recommendation of the

Central Planning Commission, by Order published in the Gazette direct"

(a) that a regional physical plan shall be prepared for any regional development area;

(b) that an outline physical plan shall be prepared for any urban development area or for any land in any such area; or

(c) that a detail plan shall be prepared for any land in any urban development area to which any provision, which is contained in any outline physical plan which has come into operation, is applicable.

(3) The Minister shall not make an Order directing the preparation of any outline physical plan or detail plan for any area or land which is situated in any regional development area unless a regional physical plan for that region has come into operation, or where no such plan has come into operation, unless the Regional Planning Committee for that area consents to the making of the Order.

(4) No Order shall be made under this section at any time prior to the date of the publication in the Gazette of the general interim development order made under section 46.

Discretion of Minister as to area or land for which outline physical plan or detail plan is to be prepared.

22. The question whether an outline physical plan or a detail plan shall be prepared for the whole or a part only of any area, and any question as to the land in any such area for which any such plan shall be prepared, shall be determined by the Minister in his discretion ;

Provided, however, that the Minister shall, in determining any such question, have regard to such representations or recommendations as may be made to the Minister by the planning authority by which the plan is to be prepared or by the Central Planning Commission.

Special provisions for planning of land contiguous to urban development areas.

23.

(1) Where an Order is made under this Part directing the preparation of a plan for any urban development area, and the Minister considers it expedient that the plan should include any provisions with respect to any land which, though situated outside that area, is contiguous to any part of that area, the Minister, after reference to the Town Council or the Village Council for the town or village area in which such land is situated, may in the same or a

subsequent Order direct the planning authority to include in the plan provisions with respect to such land :

Provided, however, that nothing in the preceding provisions shall be deemed to authorize the inclusion in any plan for any urban development area of provisions with respect to land in any other urban development area.

(2) No provisions included in any plan in pursuance of any directions given under subsection (i) shall be provisionally approved or sanctioned except after reference to the Town Council or Village Council for the town or village area in which the land to which such provisions relate is situated.

Preparation of draft plans. **24.**
[11,49 of 2000]

(1) Upon the publication in the Gazette of an Order under section 21 for the preparation of any plan for any development area or for any land in any such area, it shall be the duty of the planning authority for that area, to invite, before it prepares a draft plan for that area or land, the general public to participate in its deliberations and formulation of such plan in such manner as the planning authority may consider appropriate and to prepare such plan in accordance with the Order and on or before such date as may be specified therein.

Provided, however, that the date specified in any such Order may be varied, from time to time, by the Minister in his discretion.

[11,49 of 2000] (2) Where the Minister is satisfied that the planning authority for any urban development area has failed to invite the participation of the general public or has failed or refused to prepare or unreasonably delayed the preparation of a draft plan for any area or land, as the case may be, in accordance with the provisions of subsection (1), the Minister may direct the Director-General, National Physical Planning to prepare the draft plan for that area or land.

[11,49 of 2000] (3) the planning authority shall, in preparing any plan for any development area, have regard to the national physical planning policy.

Provisional approval of draft plan. **25.**

(I) Every draft plan which is prepared under section 24 shall be submitted to the Central Planning Commission;

and the commission shall, as soon as practicable, examine the draft plan and transmit it to the Minister together with its recommendations with respect to the approval or modification thereof.

(2) Upon the transmission of a draft plan to the Minister under the preceding provisions of this section, the Minister may, after consideration of the recommendations made by the Central Planning Commission with respect to the plan"

(a) provisionally approve the draft plan, subject to such modifications or alterations, if any, as the Minister may consider necessary; or

(b) direct the planning authority or the Director-General, National Physical Planning, as the case may be, to prepare a new draft plan containing such provisions as may be specially or generally specified by the Minister.

(3) Where the Minister is satisfied that the planning authority for any urban development area has failed or refused to prepare or unreasonably delayed the preparation of a new draft plan in accordance with any directions given by the Minister as hereinbefore provided, the Minister may direct the Director-General, National Physical Planning to prepare the new draft plan.

(4) Where a new draft plan is prepared in pursuance of directions issued by the Minister as hereinbefore provided, the provisions of subsections (1) and (2) of this section shall apply in relation to that plan in like manner as those provisions apply in the case of original draft plans prepared under section 24.

(5) The powers conferred on the Minister by the preceding provisions of this section in relation to the approval, modification or alteration of draft plans shall be exercised subject to the provisions of section 29.

Notice of approval
of draft plans and
inspection of plan.

26.

(1) Where any draft plan for any development area or for any land in that area has been provisionally approved by the Minister, it shall be the duty of the planning authority for that area, before the expiry of the prescribed period after the date of such approval"

(a) to cause copies of the draft plan and of every map, plan or sketch accompanying such plan to be prepared; and

(b) to cause a notice to be published, in the Gazette.

and in such other manner as may be prescribed, to the effect that the draft plan has been provisionally approved, and that copies of the plan and of any maps, plans or sketches accompanying the plan will be open for public inspection at such place or places as may be specified in the notice.

(2) Copies of every draft plan which has been provisionally approved by the Minister and of every map, plan or sketch accompanying that plan shall be open to public inspection free of charge during the prescribed period after the date of the publication in the Gazette of notice of the provisional approval of that plan.

Objections to draft plans.

27. Any owner or occupier of any land to which any provision in a draft plan relates, or any other person having any proprietary interest in any such land may, before the expiry of the prescribed period after the date of the publication in the Gazette of notice of the provisional approval of that plan, lodge an objection with the planning authority against any provision contained in the plan on either or both of the following grounds, or on such other grounds as may be prescribed:"

(a) that the provision is not necessary in the interests of the public or of the majority of the owners or occupiers of land affected by the provision ;

(b) that the provision in its application to the property in which the objector has an interest inflicts undue hardship upon him.

Sanction of draft plan by Minister.

28.

(1) The planning authority shall consider all objections duly lodged under section 27 with that authority in respect of any draft plan, and shall as soon as may be return the draft plan to the Central Planning Commission together with"

(a) a statement setting out the amendments or modifications, if any, which should in the opinion of the authority be made in the draft plan, and the reasons for which such amendments or modifications are proposed ;

(b) copies of all objections duly lodged with the authority in respect of the draft plan, and the

recommendations of the authority as to the disposal of every such objection.

(2) After consideration by the Central Planning Commission of all such proposals as may be made under subsection (1) by a planning authority in connexion with any draft plan, of all objections duly lodged under section 27 in respect of that plan, and of the recommendations of the planning authority upon such objections, the commission shall transmit the draft plan to the Minister together with the recommendations of the commission on the question whether the plan should be sanctioned, with or without modifications.

(3) Upon the transmission of a draft plan to the Minister under the preceding provisions of this section, the Minister may, after consideration of the recommendations made by the planning authority and the Central Planning Commission with respect to the plan and of the objections lodged under section 27, sanction the draft plan subject to such modifications or alterations, if any, as the Minister may consider necessary.

Restrictions as to approval or sanctioning of draft plans.

29.

(1) The Minister shall not under section 25 or section 28 provisionally approve or sanction any draft plan which contains any provision relating to any road in respect of which any power may be exercised under the Thoroughfares Ordinance by the Director-General of Highways, or to the development of any land adjacent to any such road, unless"

(a) the draft plan contains an estimate of the probable expenditure likely to be incurred by the Government in the execution of the provision; and

(b) that provision, and the estimate referred to in paragraph (a), have been approved by the Minister in charge of the subject of Principal Thoroughfares.

(2) Where a draft outline physical plan or a draft detail plan is prepared for any area or land which is situated in any regional development area, the Minister shall not under section 25 or section 28 provisionally approve or sanction the draft plan unless a regional physical plan for that area has come into operation, or, where no such plan has come

into operation, except after consideration of such representations or recommendations as may be made to the Minister by the Regional Committee for that area.

Incorporation in outline physical plan or detail plan of provision contained in regional physical plan.

30.

(1) Where a regional physical plan for any regional development area has come into operation the Minister may, before sanctioning under section 28 any draft outline physical plan or detail plan for any area or land situated in that area, incorporate in the draft plan, with such modifications as the Minister may consider necessary, all or any such provisions relating to that area or land as may be contained in the regional physical plan.

(2) Where any provision contained in a regional physical plan is incorporated in any draft plan under subsection (1), the provision as so incorporated shall, on and after the date on which the draft plan comes into operation in accordance with this Part, have effect in lieu of the provision contained in the regional physical plan, but without prejudice to the validity of anything previously done or suffered to be done thereunder or to any right or duty previously conferred or imposed thereby.

Approval of plans.

31. Where any draft plan modifies or suspends, or purports to modify or suspend, the operation of any provision of any enactment for the time being in force, such plan shall be brought before Parliament for approval by motion made in that behalf by the Minister.

Coming into operation of plans.

32. Every plan which has been sanctioned by the Minister shall, if, where so required by section 31, approved by Parliament, come into operation upon the expiry of a period of fifteen days after the publication in the Gazette by the Minister of a notification of such sanction, and where so required of such approval, or upon such later date as may be specified in the notification by the Minister.

Refusal to approve plan not to prevent preparation new plan.

33. The refusal by Parliament to approve any draft plan for any development area or any land in any such of area, shall not be deemed to prejudice the power of the Minister to make a new Order under section 21 directing the preparation of a new draft plan for that area or land.

Application for modification or revocation of plans.

34

(1) The planning authority for any urban development area or any trunk road development area may, at any time after a plan has come into operation for that area or for any land

in that area, make application to the Minister"

(a) to direct the preparation of a new plan for the modification or revocation of that plan; or

(b) to revoke any provision contained in that plan.

(2) Any Village Council which is declared by this Ordinance or by any plan to be the executive authority for the purpose of the execution of any provision of any plan, in so far as it relates to any road or land adjacent thereto, or to any village area, may make application to the Minister"

(a) to direct the preparation of a new plan for the modification or revocation of that provision ; or

(b) to revoke that provision.

Order or decision
for modification or
revocation, &c, of
plan.

35.

(1) Subject to the provisions of subsection (2), the Minister may upon application made to the Minister in that behalf under section 34-

(a) by Order published in the Gazette direct the authority by whom such application was made to prepare a new plan for the modification or revocation of the plan to which the application relates, or of any provision contained in that plan; or

(b) determine that any provision contained in the plan to which the application relates shall be revoked.

(2) The Minister shall not under subsection (1) make any Order or make any decision for the modification or revocation of any plan or of any provision contained therein, unless the Minister is satisfied, after such investigation as he may consider necessary, that the plan or provision, as the case may be-

(a) will -entail the payment of an excessive amount by way of compensation to owners of land and other persons ; or

(b) cannot or should not be carried into execution owing to practical difficulties or unforeseen circumstances.

Preparation of new plan 10 modify or revoke plan.

36. Every Order made under section 35 for the preparation of a new plan shall have the like effect as an Order made under section 21 and the provisions of sections 22 to 28 and of sections 31 and 32 shall, in so far as they are applicable and subject to such modifications or adaptations as may be made in that behalf by regulation, apply in relation to the preparation and consideration of the new plan and the coming into operation thereof; and where any such Order directs the preparation of a new plan by a Village Council, that Council shall be deemed to be, and shall have all the powers which may under this Ordinance be exercised by, a planning authority.

Coming into operation of decision to revoke any provision in a plan.

37. Every decision made under section 35 for the revocation of any provision in a plan shall be published in the Gazette and shall come into operation upon such publication.

PART IV

CONTENTS OF PLANNING SCHEMES

General provisions as to contents of plans.
[13,49 of 2000]

38. Subject to the national physical planning policy and the provisions of this Part, any plan made under this Ordinance may contain such provisions as may be necessary or expedient for regulating or prohibiting the use or development of land in the area to which the plan applies, and in particular for all or any one or more of the matters specified First Schedule, in the First Schedule to this Ordinance.

plans for trunk road development .

39. Notwithstanding anything in section 38. no plan for any trunk road development area, or for any land in any such area, shall contain any provision relating to any of the matters referred to in the Second Schedule to this Ordinance.

Second Schedule. Provisions in outline physical plans.

40. An outline physical plan for any urban development area or trunk road development area may contain such provisions as may be necessary for the general regulation of the development of the land to which the plan applies:

Provided that nothing in the preceding provisions of this section shall be deemed to prevent the inclusion in any outline physical plan of detailed provision with respect to any one or more of the matters for which provision may be made in a plan.

Provisions in detail plans.

41. A detail plan for any urban development area or trunk road development area may contain detailed provision with respect to any one or more of the matters for which provision is authorized by this Ordinance to be made in such plan.

Modification or
suspension of other
enactments. **42.**

(1) Any plan may, where it is necessary for the purpose of securing proper planning or development, provide for the modification or the suspension of the operation of any provision of any other enactment in so far as that provision is similar to or inconsistent with any provision contained in the plan.

(2) Where, for the purpose of securing proper planning or development, it is considered necessary to provide for the modification or the suspension of the operation of any provision of any other enactment in any plan which is in operation, that plan may be amended by regulation made under this Ordinance for the purpose of providing for such modification or suspension. Such regulation may provide that such amendment shall take effect from a date specified therein, not being a date earlier than the date on which that plan came into operation.

(3) Where any provision of any other enactment is modified by any plan which is for the time being in operation, that provision shall, in its application to the area or land to which the plan relates, apply subject to such modifications as may be specified in the plan.

(4) Where any provision of any other enactment is suspended by any plan which is for the time being in operation, that provision shall not, unless otherwise provided in the plan, apply in the area or land to which the plan relates or in such part of that area or land as may be specified in the plan.

Provisions of plans
to prevail over
provisions of
subsidiary
legislation. **43.**

(1) In the event of any conflict or inconsistency between the provisions of any subsidiary legislation and the provisions of any plan which is in operation, the provisions of such plan shall prevail over the provisions of such subsidiary legislation.

(2) For the purposes of this section, the expression "subsidiary legislation" means any by-law, regulation, rule, proclamation, order, notification, or other provision having the effect of law and made by a person by virtue of power conferred on him by any written law.

Provision directing
the use of powers
conferred by other
written law. **44.**

Any plan may contain provision directing that the authority responsible for the execution of any provision in such plan shall, for

the purpose of giving effect to that provision, exercise the powers conferred on that authority by any written law other than this Ordinance.

Special provisions
as to redistribution
of land.

45. Where any plan provides for the pooling and redistribution of sites in any specified area, the plan shall in addition contain provision for securing"

(a) that after any land which is required for roads, open spaces and other public purposes has been set apart for such purposes, the new site assigned to any person in lieu of the original site belonging to him will be of a value and extent proportionate to the value and extent of his original site, and will as far as possible enjoy any such special advantage in the way of position or frontage as was enjoyed by the original site ;

(b) that if the new site assigned to any person will be insufficient in extent to be used as a building site, the new site will, if that person so requires, be purchased or acquired by the executive authority ;

(c) that the cost of the preparation of any provision relating to the redistribution of sites, and of the execution of any such provision, will be borne by the owners of the sites in proportion to the value of the original sites belonging to them.

PART V

INTERIM DEVELOPMENT OF LAND

Interim development
orders.
[14,49 of 2000]

46.

(1) Subject to the national physical planning policy the Minister shall make a general order (hereinafter referred to as " the general interim development order ") with respect to the interim development of land situated in the areas for which plans are to be prepared, and may at any time make any such special order (hereinafter referred to as a "special interim development order ") as may be necessary with respect to the interim development of land in any specified area.

(2) An order made under subsection (1) may itself permit the development of land either unconditionally or subject to any condition specified in the order, or may empower any authority or officer so specified to grant permits for the development of land in accordance with the terms of the order and subject to such conditions and restrictions as may be set out therein.

(3) Every interim development order shall be published in the Gazette and shall come into operation upon such publication.

(4) Any special interim development order made in respect of any specified area may vary or modify any provision contained in the general interim development order in so far as that provision applies to land in the area in respect of which the special order is made.

Restrictions in
respect of interim
development.

47.

(1) Notwithstanding anything in any other written law, no person shall at any time during the period commencing on the date of the publication in the Gazette of an Order for the preparation of a plan for any development area and ending on the date on which the plan so prepared comes into operation"

(a) erect, re-erect, demolish, alter or repair any structure in that area; or

(b) lay out, construct, widen, extend or close, or attempt to lay out, construct, widen, extend, or close, any road, in that area; or

(c) develop any land in that area, or subdivide, convey, assign or otherwise dispose of or deal with any such land, in such manner as to constitute any part of the land into a separate holding,

unless authorized so to do by any provision contained in the general interim development order or in any special interim development order applicable to that area, or by a permit granted by the authority or officer specified in any such provision to be the authority or officer responsible for the regulation of the interim development of land in the area for which the plan is to be prepared,

(2)

(a) Where, at any time during the period specified in subsection (1), any person is convicted of an offence under section 82 by reason of his executing any work or causing or permitting the execution of any work in or upon or in relation to any land or structure in any development area in contravention of any provision of that subsection or of any interim development order applicable to that area, the court may, on the application of the authority or officer responsible for the regulation

of the interim development of land in that area, order that person to alter, remove or demolish that work within such period as may be specified therein.

(b) Where any person who is required to alter, remove or demolish any work by an order made by a court under this subsection fails to do so within the period specified in the order, the authority or officer on whose application the order was made, may alter, remove or demolish that work. All expenses incurred by that authority or officer in the alteration, removal or demolition of that work shall be a first charge on the property of that person and may be recovered from that person in such a manner as may be provided by regulation,

Issue of permits for interim development.

48. No permit shall be granted under section 47 by any authority or officer except in such circumstances and in accordance with such conditions as may be specified in that behalf by the general interim development order, or by any special interim development order which is applicable to the grant of permits by that authority or officer.

Appeal against refusal of permit for interim development.

49. Any person who is aggrieved by the refusal of any authority or officer to grant a permit authorizing the execution of any work or the doing of any act referred to in paragraph (a) or paragraph (b) or paragraph (c) of section 47 (1) may, in accordance with regulations, appeal to the Minister against such refusal, and the decision of the Minister upon any such appeal shall be final.

Grant of permit not to affect other written law.

50. The provisions of section 47 relating to the execution of any work or the doing of any act shall be in addition to and not in substitution for the provisions of any other written law regulating the execution of such work or to the doing of such act; and the grant of a permit under this Part authorizing the execution of any work or the doing of any act shall not be deemed to authorize the execution of such work or the doing of such act otherwise than in accordance with the provisions of any other written law which may be applicable in the case of such work or act.

PART VI

EXECUTION OF SCHEMES

Duty of executive authority to executive provisions in plans.

51. Upon the coming into operation of any plan it shall be the duty of the authority responsible for the execution of any provision contained in the plan to carry out and enforce that provision and generally to discharge and perform all such functions and duties as may be

conferred or imposed on the authority by the plan or by or under this Ordinance.

Powers exercisable
by executive
authorities. **52.**

(1) For the purpose of carrying out or giving effect to any provision contained in a plan or of securing compliance or conformity with any such provision, it shall be lawful for the executive authority or for any officer generally or specially authorized in that behalf by the authority, subject to the conditions and restrictions set out in section 53"

(a) to alter or re-erect any existing structure or work on any land to which such provision applies, for the purpose of bringing that structure or work into conformity with such provision, or to remove or demolish any existing structure or work the removal or demolition of which is necessary for the purpose of carrying out or giving effect to such provision ;

(b) to alter, re-erect, remove or demolish any structure or work, not being an existing structure or work, which has been erected or executed in contravention of such provision, or which, although erected or executed under the authority of a permit granted under the, Ordinance, has not been erected or executed in conformity with the conditions subject to which the permit was granted;

(c) to prohibit the use of any land or structure in any manner likely to contravene such provision, and where the condition, character or appearance of any land or structure has been or is being altered in consequence of the use thereof in contravention of such provision, to enter upon or into such land or structure and to execute thereon all such work as may be necessary to restore it to its former condition, character and appearance;

(d) to execute on any land any work which the owner of the land is required by such provision to execute, in any case where the authority is satisfied that the owner has delayed or is likely to delay the execution of that work and that such delay is likely to affect or prejudice the effective operation of such provision.

(2) All expenses incurred by the executive authority in the execution of any work referred to in subsection (1) upon, in

or in respect of any land or structure shall be a first charge on that land or the land on which that structure is situated, as the case may be, and may be recovered from the owner thereof in such manner as may be provided by regulation.

Conditions relating to exercise of powers conferred by section 52. **53.**

(l) No Work or act shall be executed or done by the executive authority in pursuance of the powers conferred by section 52 in, upon or in relation to any land or structure which is not vested in the authority unless"

(a) the execution of such work or the doing of such act is necessary for the purpose of carrying out or giving effect to any provision in a plan, or is authorized by any provision contained in any such plan;

(h) the authority has in the prescribed manner served on the owner and the occupier of the land or structure a notice specifying the work or act which the authority intends to execute or do, and the grounds upon which the authority is entitled to execute or do such work or act, and the prescribed period has elapsed after the date of the service of the notice.

(2) Any person on whom a notice is served under subsection (1) may, subject to regulations, appeal to the Minister against the proposal of the executive authority to execute or do the work or act to which the notice relates, and the decision of the Minister on any such appeal shall be final.

In any case where an appeal is preferred to the Minister under this section, the period referred to in paragraph (b) of subsection (1) shall be deemed to be extended to the date on which the decision of the Minister on the appeal is communicated to the person by whom the appeal is preferred.

Redistribution of land. **54.**

(1) Where any plan contains provision for the pooling and redistribution of the sites in any specified area, every such site shall, for the purpose of enabling the executive authority to issue certificates of title under subsection (2), be deemed on the coming into operation of the plan, or on such later date as may be specified therein, to be vested in

the executive authority ; or where the executive authority is the Superintending Engineer, in the State.

(2) Where by any provision referred to in subsection (1) any new site is assigned to any person in lieu of the original site belonging to that person, the executive authority shall issue to that person a certificate in the prescribed form signed by the Chairman of that authority together with two plans showing respectively the new site and the original site, and certifying that the new site has been assigned to him in lieu of the original site; every certificate so sealed and issued to any person shall be a sufficient document of the title of that person to the new site:

Provided that in any case where the executive authority is the Superintending Engineer of any province, the certificate under the preceding provisions shall be issued by the Government Agent of the relevant administrative district in that province.

(3) Where a certificate of title to a new site is issued to any person or persons under subsection (2), the new site and every structure thereon shall vest in such person or persons, as the case may be, in the same shares and to the extent of the same interests as the original site in lieu of which the new site is assigned to such person or persons, subject to the same encumbrances, charges, trusts and other restrictions on alienation or otherwise, and to the same liabilities (other than such servitudes as may be expressly extinguished under the plan) as such original site.

(4) Where in connexion with the execution of any provision in a plan for the redistribution of sites, any question or dispute arises in respect of the title to any land or structure, or any rights thereto or interest therein, the Chairman of the executive authority, or where the Superintending Engineer is the executive authority, the Government Agent shall, if the question or dispute cannot be settled by agreement, refer it to the District Court, and such question or dispute shall be determined by the District Court as though it were referred to the court under the Land Acquisition Act, and all the provisions of that Act shall, mutatis mutandis, apply to the determination of the question or dispute so referred.

(1) No person shall, on or after the date on which any plan comes into operation for any area" (a) erect, re-erect, alter or repair any structure in or upon any land in that area; or

in connexion with
roads.

(b) lay out, construct, widen, extend, or close, or attempt to lay out, construct, widen, extend, or close, any road in or upon any land in that area, except under the authority of a permit issued by the executive authority.

(2) A permit shall be granted by the executive authority under subsection (1) unless the authority is satisfied that the work to be executed under the authority of the permit will be inconsistent with or in contravention of any provision in the plan, or of any provision of any other written law relating to the execution of such work which may be applicable in the area in which the work is to be executed.

(3) Any person who is aggrieved by the refusal of the executive authority to grant a permit under this section may, subject to regulations, appeal to the Minister against such refusal and the decision of the Minister upon any such appeal shall be final.

Application of other
law in execution of
plans.

56. Save as otherwise provided in this Ordinance or in any plan, the provisions of this Ordinance and of any plan shall be in addition to and not in substitution for or in derogation of any other written law relating to the powers and duties of the authorities or officers declared to be executive authorities for the purposes of this Ordinance, or to the execution of any work by any such authority or officer, or to the regulation and control by any such authority or officer of the development of any land or of the execution of any work thereon ; and in any case where any such authority or officer is, in the capacity of executive authority, required by any plan to do or execute any act or work which such authority or officer is authorized to do or execute under the provisions of any other written law, all such powers as are conferred by such other law may be exercised by the executive authority for the purpose of doing or executing such act or work in like manner as though the act were to be done or the work executed under the provisions of such other law.

Notification of
completion of work
by executive
authority.

57. Upon the coming into operation of any plan, the executive authority shall determine the units into which the area to which the plan applies shall be divided for the purpose of the execution of the provisions of the plan; and where the authority is satisfied that, in any such unit, all work required to be executed by the authority under the plan has been completed, the authority shall cause a notice to be published in the Gazette to the effect that all such work has been completed in that unit:

Provided, however, that no notice shall be published under this section in respect of any such unit unless all works of construction, demolition, alteration or re-erection, which are required to be executed by the executive authority under the plan, have been completed.

PART VII

ACQUISITION OF LAND, COMPENSATION FOR INJURIOUS AFFECTION.
BETTERMENT CONTRIBUTIONS

Enforcement of
provision for
acquisition of land.

58.

(1) Where provision is contained in any plan authorizing the acquisition of any land, it shall be lawful for the executive authority responsible for the execution of that provision to purchase the land by agreement.

(2) In any case where the executive authority is unable or deems it inexpedient to purchase by agreement any land which that authority is, by any provision contained in a plan, authorized to acquire, that land may be acquired under the Land Acquisition Act by the Government for that authority, and that Act shall, subject to the modifications set out in the provisions of this Part, apply for the purposes of the acquisition of that land.

Modification of
section 45 (I) of Land
Acquisition Act.

59. In the application of subsection (I) of section 45 of the Land Acquisition Act in any case where any land is to be acquired in pursuance of any provision contained in a plan, that subsection shall have effect as though, for the words "date of publication of that notice in the Gazette ", occurring in that subsection, there were substituted the words "date on which the draft plan relating to the land was first submitted to the Central Planning Commission ".

Modification of
section 48 of Land
Acquisition Act.

60. In the application of the provisions of section 48 of the Land Acquisition Act in any case where any land is to be acquired in pursuance of any provision contained in a plan, the following matters shall be deemed to be added to the list of matters which shall not be taken into consideration :"

(a) the special suitability or adaptability of the land or of any structures thereon for the purposes for which the land will be used by the executive authority;

(b) the income derived from any structure which has been certified by the executive authority to be unfit for human habitation ;

(c) any improvements made at the cost of the executive authority or of the Government in, upon or in the proximity of the land which is to be acquired;

(d) the purpose for which the land has been used or is capable of being used, in a case where any plan provides that such land shall not be used for that purpose;

(e) any temporary increase in the value of land due to the expectation of a rise of prices consequent upon the operation of a plan.

Possession.

61. Notwithstanding that the amount of compensation to be paid in respect of any land to be acquired in pursuance of any provision in a plan has been finally determined under the Land Acquisition Act, the Minister may direct that possession of the land shall not be taken on behalf of the State until such time as possession is required by the executive authority for the purpose of carrying out or giving effect to any provision contained in the plan.

Funds out of which compensation is payable.

62. Where any land is to be acquired in pursuance of any provision contained in a plan, and the land is acquired under the Land Acquisition Act, the amount to be paid as compensation in respect of such land shall, if the authority responsible for the execution of that provision is a Municipal or Urban Council, or Town Council or Village Council, be paid out of the funds of the executive authority, and upon such amount being paid, such land may be vested in that authority in accordance with the provisions of such Act: Provided, however, that nothing in the preceding provisions of this section shall apply in any case where any plan provides that the compensation payable in respect of any land which is acquired shall be paid by the Government.

Use of acquired property by executive authority.

63.

(1) Where possession is taken by the executive authority of any land which is purchased or acquired in pursuance of any provision contained in a plan, the authority may proceed to execute in or upon such land any work necessary for the purposes of carrying out or giving effect to the plan.

(2) Nothing in subsection (1) shall be deemed to prejudice or affect the right of the executive authority to sell or let any land or structures which have been purchased or acquired in pursuance of any provision contained in a plan:

Provided, however, that in the case of the sale of any such land by the executive authority, the land shall first be offered for sale to the person from whom it was purchased or acquired at a price which shall not be more than the total of"

(a) the amount paid to that person upon the purchase or acquisition ; and

(b) such amount, if any, as the executive authority considers to be the amount by which the land has

increased in value by reason of the execution of any one or more of the provisions of any plan.

(3) Every offer which is made to any person in accordance with the requirements of the proviso to subsection (2) shall remain open for acceptance for a period of not less than one month.

Right to
compensation for
injurious affection.&
c.

64.

(I) Subject to the provisions of sections 65 and 66, any person"

(a) whose property is injuriously affected by the coming into operation of any provision contained in a plan or by the execution of any work under any such provision ; or

(b) who, for the purpose of complying with any provision contained in a plan or in making any claim in accordance with the preceding provisions of this Part relating to compensation, has incurred expenditure which has been rendered abortive by a subsequent variation or revocation of the plan,

shall, if he makes a claim within the time limited for the purpose by section 68, be entitled to recover as compensation from the executive authority, or where the executive authority is the Superintending Engineer, from the Government Agent on behalf of the Government, the amount by which his property has decreased in value, and in the case of property on which he has carried on a trade or business or profession, the amount of any resulting injury to that trade or business or profession, or, in so far as it was reasonably incurred, the amount of the abortive expenditure, as the case may be.

(2) In awarding any compensation payable in respect of property injuriously affected by the coming into operation of any provision contained in a plan, account shall, subject to the provisions of sections 65 and 66, be taken of any additional injurious affection of the property by reason that after the date of the publication of an Order under section 21 directing the preparation of the plan, the Minister has on an appeal preferred under section 49 refused to grant a permit authorizing the execution of any work on, or the doing of any act in relation to, that property.

Exclusion of compensation in respect of loss consequent upon erection of new structure, change of use, & c.

65. In any case where any structure is erected or any work carried out on any land at any time after the date of the publication of a notice of the provisional approval of a draft plan applicable to that land or to the area in which the land is situated, or in any case where any such land is after that date used for a purpose for which it had not been used before that date, no person shall be entitled to any compensation under paragraph (a) of section 64 (I) in respect of any loss or damage consequent upon the erection of that structure, or the execution of that work, or the change of the use to which the land was put, as the case may be, unless"

(a) the erection of such structure or the execution of such work or the change in the use of the land was authorized by permit under section 48 or is effected in pursuance of a contract made before the date aforesaid; or

(b) the erection of such structure or the execution of such work was commenced before the date aforesaid.

Provisions in plan to exclude compensation for injurious affection.

66.

(1) Subject to the provisions of subsection (2), a plan may provide either generally or in respect of any specified land that no compensation shall be payable under paragraph (a) of section 64 (I) in the case of the injurious affection of property by the coming into operation of any one or more of the following provisions, that is to say:"

(a) a provision which restricts the purposes for which or the manner in which any land or any structures thereon may be used ;

(b) a provision which prescribes the space about structures, or regulates the shape of any building or plot, or the number of structures which may be erected on any such plot;

(c) a provision which regulates the size, height, elevation or design of structures;

(d) a provision which temporarily prohibits or restricts building operations or the development of land, pending the preparation or coming into operation of a detail plan;

(e) a provision which permanently prohibits or restricts building operations on any land, on the ground that, by reason of the situation or nature of the land, the erection of buildings thereon would be likely to cause danger or injury to health or would involve excessive expenditure of public

money in the provision of the necessary roads, sewers, water supply or other public services;

(f) a provision which restricts the number, or prescribes the minimum width, of roads entering a principal thoroughfare;

(g) a provision which regulates the height and position of boundary walls, fences, trees or hedges at the corner or in the neighbourhood of bends or junctions of roads ;

(h) a provision which, in the case of land which at no time within the period of five years immediately preceding the date on which the plan comes into operation, was or formed part of the site of a building, fixes in relation to any street or proposed street a building line or set-back ;

(i) a provision which prohibits the erection of structures on any sites on the ground that such sites in the opinion of the planning authority, have no satisfactory means of access;

(j) a provision which requires the removal or cutting of trees for the purpose of securing adequate light and ventilation for dwelling houses ;

(k) a provision which prohibits or regulates the erection of advertisements visible from a public road or open space, or for the removal of any such advertisements;

(l) a provision which requires the compulsory fencing of land or the compulsory erection of boundary walls;

(m) a provision which enables any court to order the demolition or alteration of dwelling houses certified by the executive authority to be unfit for human habitation or of structures so certified to be dangerous;

(n) a provision which requires the preservation of any trees or groups of trees;

(o) a provision which requires owners of land in commercial or business areas to erect arcades

(2) The Minister shall not approve any provision in any plan which excludes compensation"

(a) unless the Minister is satisfied that, having regard to the objects of the plan and to local circumstances, the provision is proper and reasonable;

(b) where the provision in respect of which compensation is to be excluded relates to any of the matters mentioned in paragraphs (a) to (c) of subsection (1), unless the plan contains provisions which are sufficient in the opinion of the Minister, to secure that existing structures may be maintained, and their existing use continued and that reasonable alterations and extensions may be made in proper cases;

(c) where the provision in respect of which compensation is to be excluded relates to any matter mentioned in paragraph (h) of subsection (1), unless the Minister is satisfied that, in so far as that provision affects any plot of land belonging to any person, the area of the plot will not be diminished to such an extent as to render it less suitable for the erection of buildings in conformity with the provisions of the plan and of any other written law which may be applicable.

(3) In considering whether any provision excluding compensation should be approved, the Minister shall have regard-

(a) to the nature and situation and existing development of the land affected by the provision in respect of which compensation' is to be excluded, and of neighbouring land not so affected ; and

(b) the interests of all persons who would be affected by the provision in respect of which compensation is excluded.

property on the ground that it has been injuriously affected by any provision contained in the subsequent plan if and in so far as the later provision is the same, or substantially the same, as the earlier provision so revoked :

Provided, however, that if at the date when the earlier provision is replaced by the provision in the subsequent plan"

(a) there is still outstanding any claim for compensation duly made in accordance with the provisions of this Part; or

(b) the time originally limited for making such a claim has not expired,

any such outstanding claim or any claim made within the time so limited shall be entertained and determined, and may be enforced, in the same manner in all respects as if the earlier plan had continued in operation.

Making of claims for compensation for injurious affection. **68.**

(1) A claim under section 64 for compensation shall be made by serving on the executive authority, or where the executive authority is the Superintending Engineer, on the Government Agent, a notice in writing in the prescribed form setting out the amount claimed and the grounds of the claim.

(2) For the purpose of enabling claims to be made under this section, it shall be the duty of the executive authority, when a plan comes into operation or when any provision of any plan is varied or revoked, to cause a notice in the prescribed form of the fact that the plan has come into operation or that the provision has been varied or revoked, as the case may be. to be affixed on some conspicuous position on each land affected by the plan or by the provision so varied or revoked.

(3) A claim under section 64 for compensation shall

(a) if made on the ground of the coming into operation of any provision contained in a plan, be made before the expiry of a period of one year from the date specified in that behalf in the notice affixed under subsection (2) on the land to which the claim relates ;

(b) if made in respect of any expenditure rendered abortive by the variation or revocation of any provision contained in a plan, be made before the expiry of a period of one year from the date specified in that behalf in the notice affixed

under subsection (2) on the land to which the claim relates ;

(c) if made on the ground of the execution of any work under any provision contained in a plan, be made before the expiry of a period of one year from the date of the notification published under section 57 by the executive authority declaring that the work has been completed.

Determination of claims for compensation for injurious affection. &c.

69.

(1) Where a claim is duly made by any person for compensation under section 64, the executive authority or the Government Agent, as the case may be, shall, after such inquiry as may be necessary, determine the amount of compensation, if any, which should be paid to that person in respect of the claim.

(2) Where the executive authority or the Government Agent is unable to settle by agreement the amount of compensation to be paid in respect of any claim, the Chairman of the authority or the Government Agent shall refer the matter for determination to the District Court, or, where the amount claimed by the claimant does not exceed one thousand five hundred rupees to the Primary Court; and in making such reference shall state for the information of the court in writing under his hand"

(a) the name of the claimant ; and

(b) the amount of compensation, if any, which has been tendered, and the amount claimed by the claimant.

(3) Where any reference is made to a District Court or Primary Court under subsection (2) in relation to any claim, the court shall determine the amount of compensation, if any, which should be paid to the claimant.

Payment of compensation in certain cases.

70. Where any sum becomes payable by the Government Agent as compensation under section 64, that sum shall be paid out of moneys voted by Parliament for the purpose.

Power to recover
betterment
contribution.

71.

(1) Where the value of any property is increased by the coming into operation of any provision in a plan or by the execution of any work under any such provision, the authority responsible for the execution of that provision may, subject to the restrictions imposed by subsection (3), recover from the owner of the property an amount (hereinafter referred to as "betterment contribution") not exceeding sixty per centum of the amount by which the value of the property is so increased.

(2) A betterment contribution may be recovered from the owner of any property notwithstanding that the plan under which the contribution is recovered does not apply to that property.

(3)

(a) No betterment contribution shall be recovered from the owner of any property in respect of any plan if the market value of the property at the time when the plan came into operation did not exceed two thousand five hundred rupees.

(b) No betterment contribution shall be recovered in respect of any plan from the owner of any property unless"

(i) the plan contains provision authorizing the recovery of betterment contributions from the owners of property in consequence of the operation or execution of the plan; and

(ii) the executive authority has, before the expiry of a period of five years after the date on which the plan came into operation, served a notice in the prescribed form on the owner of the property specifying the amount claimed as betterment contribution.

Appeal against levy
of betterment
contribution.

72.

(1) In any case where the owner of any property is aggrieved by the decision of the executive authority to recover a betterment contribution in respect of that property, he may, subject to regulations, appeal to the District Court, or, where the amount sought to be recovered

as a betterment contribution does not exceed one thousand five hundred rupees, to the Primary Court, and such court may on any such appeal"

(a) determine that no contribution shall be recovered, if satisfied that the recovery of such contribution in such case is not authorized by the provisions of section 71 ; or

(b) reduce the amount of the contribution sought to be recovered, if satisfied that such amount is excessive having regard to the provisions of subsection (l) of that section.

(2) The determination of the District Court or the Primary Court, as the case may be, on any appeal referred to in subsection (1) shall be final.

Payment of
betterment
contribution.

73.

(1) Subject to the provisions of subsection (2), the amount due as a betterment contribution in respect of any property shall be recoverable by the executive authority in four equal annual instalments, the first of which shall be payable before the last day of the month succeeding the month in which a notice in respect of the contribution is served under section 71 (3) (b), or, in the event of an appeal against any decision to recover a betterment contribution, before the last day of the month succeeding the month in which notice of the determination of the District Court or Primary Court, as the case may be, upon such appeal is served on the owner of the property. The instalment due in any subsequent year shall be payable before the corresponding day in that year.

(2) Notwithstanding anything in subsection (l), .the amount due as a betterment contribution' in respect of any property shall, in any case where the executive authority and the owner of the property so agree, be payable in such instalments and at such intervals, as may be fixed in such agreement.

(3) Any instalment due in respect of any property under this section shall be a first charge on that property and may be recovered from the person who is the owner of that property for the time being in such manner as may be provided by regulation.

PART VIII

SUPPLEMENTARY PROVISIONS, REGULATIONS, &c.

Returns, information
& c **74.**

(1) Subject to such regulations as may be made in that behalf,, the Director-General, National Physical Planning or any planning authority or executive authority may, for the purpose of the preparation or execution of any plan, by notice require and person to furnish such returns or information relating to the title of that person to any land or structure to which the plan applies or is to apply, or to the rent, if any, paid to or by that person for any such land or structure, or to such other matters affecting any such land or structure as may be within the knowledge of the person to whom the notice is sent.

(2) It shall be the duty of any person to whom a notice is sent under subsection (1) to comply with the requirements of the notice.

(3) Regulations may be made prescribing the form of notices and returns to be sent or furnished under this section,

Powers of entry, &c. **75.**

(1) The Director-General, Town and! Country Planning or any planning authority or executive authority or any officer or person specially or generally authorized in that behalf by such authority, may, for the purpose of the preparation or execution of any plan or of the exercise or performance of the powers or duties conferred or imposed on the said Director-General or the authority by or under this Ordinance, enter upon or into any land or structure situated in the area for which the plan is to be made, or, as the case may be, to which the plan applies, and may make such inspections, surveys, examinations or inquiries as may be necessary for any such purpose.

(2) Regulations may be made prescribing the manner in which and the times at which the powers conferred by subsection (1) may be exercised.

Power to allow
owners or occupiers
to execute work on
behalf of executive
authority. **76.**

(1) Where the executive authority is authorized by or under this Ordinance to do or execute any act or work in, upon or in relation to any land or structure, it shall be lawful for the authority to arrange with the owner or occupier of such land or structure to do or execute such act or work.

(2) Where the cost of doing or executing any act or work which is authorized or required by or under this Ordinance to be done or executed in, upon or in relation to any land or structure by the executive authority, is not declared by this Ordinance to be recoverable from the owner of the land or structure, the executive authority may, if an arrangement is made under subsection (1) for the doing or execution of the act or work by the owner or occupier of the land or structure, pay to the owner or occupier, as the case may be, the amount of all expenses reasonably incurred by the owner or occupier in the doing or execution of the act or work.

Service of notices,& **77.**
c

(1) Any notice, order, claim, instrument or other document required by or under this Ordinance to be served on any person may be served"

(a) by delivering it to that person ; or

(b) by leaving it at the usual or last known place of abode of that person, or, in the case of a company- by leaving it at the registered office of the company ; or

(c) by sending it by post addressed to that person at his usual or last known place of abode, or, in the case of a company, to the registered office of the company.

Any such document required by or under this Ordinance to be served on the occupier of any land may be served by delivering it to some person on the land, or where there is no person on the land to whom the document may be so delivered, by affixing it in a conspicuous position on the land.

(2) Any document which is served in accordance with any of the provisions of subsection (1) shall be deemed to have been duly served on the person to whom it is addressed.

(3) Any notice, claim, instrument or other document required by or under this Ordinance to be served on or sent or transmitted to any planning authority or executive authority shall be deemed to be duly served, sent or transmitted if it is delivered at, or sent by post to, the office of the authority addressed to the authority or to the Chairman or secretary, if any, of the authority.

Signature of documents issued or served by authorities.

78. Any permit, notice, order or other document required or authorized to be granted, served or issued by any planning authority or executive authority by or under this Ordinance shall be deemed to be sufficiently authenticated if signed by the Chairman of the authority or by some other officer or person authorized in writing in that behalf by the Chairman.

Expenditure, & c.

79.

(1) Save as otherwise provided in subsection (2)"

(a) all expenses incurred by any executive authority (other than the Superintending Engineer) in carrying out or giving effect to any provision of this Ordinance or of any plan or regulation made thereunder shall be paid out of the funds of that authority ;

(b) all sums recovered by an executive authority from the owners or occupiers of any lands or structures under this Ordinance or any plan shall be paid into the funds of that authority.

(2)

(a) All expenses incurred by the Superintending Engineer of any province as the executive authority for the purpose of the execution of any plan shall be paid out of moneys provided by Parliament for the purpose.

(b) All sums recovered by the Superintending Engineer of any province as the executive authority from the owners or occupiers of any lands or structures under this Ordinance or any plan shall be credited to the Consolidated Fund.

Authority for expenditure from funds of local authorities and for imposition of special rate.

80.

(1) The purposes for which any local authority may expend the funds at its disposal under any enactment regulating its powers and duties shall include the exercise of the powers and the performance of the duties conferred or imposed by or under this Ordinance on that authority in the capacity of a planning authority or an executive authority. Any such local authority may, with the consent of 'the Minister, for the purpose of meeting the expenses incurred in the exercise and fulfilment of such powers and duties, levy a special rate not exceeding five per centum per annum on the

annual value of all rateable property situated within the administrative limits of that authority.

(2) Any special rate levied under subsection (1) by any local authority shall be in addition to any other rate levied by the authority under the provisions of any other enactment; and all the provisions of any other written law relating to the levy, assessment and recovery of rates by that authority shall apply to such special rate in the same manner and for the same purpose as if they had been inserted herein.

Regulations.

81.

(1) The Minister may make regulations for the purpose of carrying out the provisions and giving effect to the principle of this Ordinance.

(2) Without prejudice to the generality of the powers conferred by subsection (1), the Minister may make regulations for or in respect of all or any of the following matters:"

(a) all matters stated or required in this Ordinance to be prescribed or in respect of which regulations are authorized or required by this Ordinance to be made.

(b) the procedure to be adopted and the matters to be taken into consideration for the purpose of the preparation of civic surveys ;

(c) the procedure to be adopted by planning authorities in the preparation of draft plans, and the particulars, estimates, plans, maps and notes which should be prepared in connexion with draft plans;

(d) the forms of all notices relating to draft plans and sanctioned plans, the times within which and the conditions subject to which objections may be made to provisions contained in draft plans, and the matters to be taken into consideration by planning authorities in making their recommendations as to the disposal of such objections;

(e) the measures to be taken by planning authorities for the purpose of securing the assistance and co-operation of owners of land in the preparation of draft plans, and the adoption of

plans or proposals recommended by such owners;

(f) the inspection of draft plans and of sanctioned plans by persons interested, and the fees, if any, to be paid for such inspection;

(g) the holding of local inquiries for the purpose of enabling the Minister or the Central Planning Commission to obtain information relating to the necessity or desirability of including any provision in, or excluding any provision from, a plan, the persons by whom such inquiries shall be held, the circumstances in which and the procedure according to which oral representations may be made and evidence adduced at such inquiries and the reports to be made to the Minister or to the commission upon such inquiries;

(h) the manner in which the expenses incurred in the preparation of plans for regional development areas shall be apportioned between the local authorities whose administrative areas are included in the areas;

(i) the payment by planning authorities of expenses incurred by the Director-General, National Physical Planning in connexion with the preparation of draft plans;

(j) the issue of permits by executive authorities under this Ordinance, and the fees, if any, to be paid by applicants for such permits ;

(k) appeals under this Ordinance, including the time within which such appeals shall be preferred and the fees payable upon such appeals;

(l) the time and mode of recovery, whether summary or otherwise, of any instalment due in respect of any property under section 73 or of any expenses referred to in section 47 (2) (b) or section 52 (2);

(m) all matters connected with or incidental to the matters specifically referred to in this subsection.

(3) Any regulation made under this section may be limited in application to any specified area in Sri Lanka.

(4) No regulation shall have effect until it has been approved by Parliament. Notification of such approval shall be published in the Gazette.

(5) Upon the publication in the Gazette of a notification to the effect that a regulation made by the Minister has been approved by Parliament, that regulation shall be as valid and effectual as if it were herein enacted.

Offences.

82.

(1) Every person who"

(a) executes any work or does any act, or causes or permits any work or act to be executed or done in or upon or in relation to any land or structure, or

(b) develops or subdivides or otherwise deals with any site or plot of land, or causes or permits any site or plot of land to be developed or subdivided or otherwise dealt with; or

(c) uses any land or structure, or causes or permits any land or structure to be used,

in contravention of any provision of this Ordinance or of any interim development order, plan or regulation, shall be guilty of an offence.

(2) Every person who executes any work or does any act, or causes any work or act to be executed or done in or upon any building, place or thing declared in any plan to be a building, place or thing of historical, architectural or natural interest or beauty, shall if such work or act is executed or done otherwise than in accordance with the provisions of the plan, be guilty of an offence.

(3) Every person who fails to comply with any obligation imposed upon him by any plan or any order or direction lawfully made or given thereunder, or to do any act or execute any work when required so to do by or under this Ordinance or any plan, shall be guilty of an offence.

(4) Every person who, being the holder of any permit issued under this Ordinance, executes any work or does any act otherwise than in accordance with the conditions

subject to which the permit is issued, shall be guilty of an offence.

(5) Every person who"

(a) knowingly makes any false or incorrect statement in any application, return or other document made or furnished under or for the purposes of this Ordinance or of any plan; or

(b) fails or refuses to furnish any information or return required by or under this Ordinance to be furnished by him; or

(c) fails or refuses to produce to a planning authority or executive authority for the purpose of inspection any document required by that authority in connexion with the preparation or execution of any plan; or

(d) resists or obstructs any authority, officer or person in the exercise, discharge or performance of any power, function or duty conferred or imposed on that authority, officer or person by or under this Ordinance,

shall be guilty of an offence.

Offences by officers
& c. of planning
authority.

83. Every officer or person in the employment of a planning authority who, except with written permission given by or on behalf of that authority"

(a) at any time prior to the publication in the Gazette of a notice under section 26 (1) in respect of any draft plan prepared by that authority, communicates any information to any person relating to the contents of the draft plan ; or

(b) at any time before a plan prepared by that authority comes into operation, enters into or interests himself in any transaction for the purchase, lease or disposal of any land or structure in the area for which the plan is prepared,

Penalty for
offences.

84. Save as otherwise provided in section 83, any person who commits any offence under this Ordinance shall, on conviction after summary trial before a Magistrate, be liable to a fine not exceeding five hundred rupees, and in the case of a continuing offence to a further fine not exceeding fifty rupees for every day during which the offence continues.

The Interpretation. **85.**

(1) In this Ordinance, unless context otherwise requires"

" building line ". when used with reference to a road, means a line defining the limit of the area on either side of the centre of the road upon which no structure or work, other than a boundary wall, fence or other authorized structure or work, shall be erected ;

"building operations" includes any road works preliminary or incidental to the erection of structures;

"Commissioner" means the Commissioner of Local Government;

"curtilage " means the area of land within the boundaries of any one plot on which any structure is erected ;

" detail plan" means a detail plan for any urban development - area or trunk road development area or for any land in any such area;

" development ", when used with reference to any land, includes the parceling or subdivision of such land, the erection or re-erection of structures and the construction of works thereon, the carrying out of building operations thereon, and save as otherwise provided in subsection (2) of this section, any change in the purpose for which the land or any structure thereon is used ;

"existing structure" means any structure erected, constructed or carried out on any land at any time before the date of the publication in the Gazette of an Order under section 21 directing the preparation of a plan for that land or for the area in which the land is situated, and includes any structure or work, as the case may be, which is"

(a) erected, constructed or carried out after that date in pursuance of a contract entered into before that date; or

(b) begun before, but completed after that date ;
or

(c) erected, constructed or carried out under a permit granted under section 47 ; and

"existing work" has a corresponding meaning;

"existing use", when used with reference to any land or structure thereon, means the use of the land or structure for a purpose of the same or a similar character to that for which the land or structure was used immediately before the date of the publication in the Gazette of an Order under section 21 directing the preparation of a plan for the land or for the area in which the land is situated ;

"land" includes land covered with water and any right in or over and ;

"local authority", when used with reference"

(a) to a Municipal area, means the Municipal Council for that area;

(b) to a town within the meaning of the Urban Councils Ordinance, means the Urban Council for that town ;

(c) to a town within the meaning of the Town Councils Ordinance, means the Town Council for that town ;

"Municipal area" means the area within the administrative limits of a Municipal Council;

"outline physical plan" means an outline physical plan for any urban development area or trunk road development area, or for any land in any such area;

"owner", when used with reference to any land or structure, includes the person for the time being receiving the rent of the land or structure, whether on his own account or as agent or trustee for any other person, or who would receive the rent if the land or structure were let to a tenant;

"plot" in relation to land means the entirety of any land which has been demarcated by boundary marks or is enclosed within boundary walls or fences, whether such land belongs to one single person or to a set of co-owners;

"prescribed" means prescribed by regulation;

"principal thoroughfare" means any road which is for the time being declared under section 5 of the Thoroughfares Ordinance to be a principal thoroughfare;

"regional physical plan" means a plan for any regional development area or for any land therein;

"regulation " means a regulation made by the Minister under this Ordinance;

"road" means any public or private highway, street, carriageway, cartway, lane or pathway, and includes"

(a) any bridge, footway, pavement, grass margin, roundabout, square, drain, embankment or ditch belonging or appertaining to any road ;

(b) any land adjoining any road which has been reserved for the protection or benefit of the road; and

(c) any land which has been marked offer reserved for the construction, widening or diversion of any road ;

"structure" includes any building, wall, fence, excavation or other erection or thing constructed or erected in or upon any land.

(2)

(a) The use of any land for the purpose of agriculture, horticulture or as a pasture ground ; and

(b) the use of any land within the curtilage of a dwelling house for any purpose incidental to the enjoyment of a dwelling house, as such, other than a purpose necessitating building operations, shall not be deemed to be development of the land for the purposes of this Ordinance.

Ordinance not to apply to land or structures belonging to the State or occupied by the armed forces.

86. Nothing in this Ordinance or in any plan shall apply in the case of any land or structure which belongs to the State or which is for the time being occupied on behalf of the State for the purposes of any of its armed forces

Ordinance not to apply to ancient monuments or archaeological reserves.

87. Nothing in this Ordinance or in any plan shall apply to any ancient monument within the meaning of the Antiquities Ordinance or to any

land which is duly declared to be an archaeological reserve under section 33 of that Ordinance.

This Act to prevail
over other laws.
[15,49 of 2000]

88. The provisions of this Act shall have effect notwithstanding anything to the contrary in any other law and accordingly in the event of any conflict or inconsistency between the provisions of this Act and such other law. the provisions of this Act shall prevail over such other law.

Schedules

Chapter 605